

24STCV08123 24STCV08123

County: los-angeles

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Case Number: 24STCV08123 Hearing Date: August 14, 2026 Dept: 11

Final Approval of Class Action

Settlement

Department

SSC-11

Schwaner

vs Diptyque Distribution LLC, et al.

Case Number: 24STCV08123

Hearing Date: August 14, 2026

TENTATIVE

RULING

The Court grants final approval of the settlement and awards/approves the following: (1) \$193,333.33 (1/3) for attorneys' fees; (2) \$21,441.59 in attorney costs; (3) \$7,500 to the class representative for an enhancement award; (4) \$7,000 for claims administration costs; and (5) \$15,000 (75% of \$20,000 PAGA penalty) to the LWDA.

Class

counsel is ordered to file a final report summarizing all distributions made pursuant to the approved settlement, supported by declaration. The Court will set a non-appearance date for submission of a final report for _____, 2026.

BACKGROUND

This is a wage and hour class action. On March 29, 2024, Plaintiff commenced this Action by filing a Complaint alleging causes of actions against Defendant for: failure to pay regular and overtime wages; failure to provide meal breaks and rest breaks (or compensation in lieu thereof); waiting time penalties; wage statement violations and statutory penalties; failure to pay vacation/PTO wages; failure to provide personnel files; civil penalties under PAGA; and unfair competition (the "Operative Complaint" in the Action).

On June 5, 2024, Plaintiff filed a Dismissal, dismissing without prejudice all of the named defendants other than Defendant Diptyque Distribution LLC.

Counsel represents that prior to mediation Plaintiff obtained, through informal discovery: (a) time and payroll records for all putative class members through mediation; (b) putative class data points, including, inter alia, the number of Class Members and Aggrieved Employees, the number of employees in the waiting time penalty period, the average hourly rate of pay, the number of Workweeks during the Class and PAGA Periods, and the number of shifts through mediation; (c) Defendant's wage and hour policy documents, including all written policies relating to meal and rest breaks, overtime, clocking in and out, and recording of work time; and (d) all documents pertaining to Plaintiff available to Defendant.

On December 19, 2024, the Parties participated in an all-day mediation presided over by Steve Serratore, and were able to come to an agreement.

The court granted preliminary approval on October 29, 2025. Notice was given to the Class Members as ordered. (See Declaration of Bentley Conn ("Conn Decl.").)

Now before the Court is the Parties' Motion for Final approval of the proposed class action settlement.

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CLASS

DEFINITION AND ESSENTIAL TERMS OF SETTLEMENT AGREEMENT

The

essential terms are as follows:

· “Class” means all persons currently or formerly employed by Defendant as non-exempt, hourly-paid employees during the Class Period. (Settlement, ¶1.5.)

o “Class Period” means the period from March 29, 2020 through February 17, 2025. (¶1.12)

o The Class List contained 180 individuals. (Conn Decl., ¶5.)

· “Aggrieved Employees” means all persons currently or formerly employed by Defendant as non-exempt, hourly-paid employees during the PAGA Period. (¶1.4)

“PAGA Period” means the period from January 24, 2023 through February 17, 2025. (¶1.31)

o There are 107 Aggrieved Employees. (Conn Decl., ¶18.)

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Defendant represents that there are no more than 8,414 Workweeks worked by Class Members during the Class Period. In the event the number of Workweeks worked by Class Members during the Class Period increases by more than 784 Workweeks (representing 10% of the originally estimated 7,834 Workweeks used for purposes of mediation), then the Gross Settlement Amount shall be increased proportionally by the Workweeks in excess of 8,618 Workweeks multiplied by the Workweek Value. The Workweek Value shall be calculated by dividing the originally agreed-upon Gross Settlement Amount (\$580,000.00) by the originally estimated 7,834 Workweeks used for purposes of mediation, which amounts to a Workweek Value of \$74.04. Thus, for example, should there be 9,000 Workweeks in the Class Period (i.e., 382 Workweeks in excess of 8,618), then the Gross Settlement Amount shall be

increased by \$28,283.28 ((9,000 Workweeks – 8,618 Workweeks = 382 Workweeks) x \$74.04 per Workweek). (¶18.1)

o

The total number of Workweeks during the relevant period was 8,414.00; thus, the Escalator Clause has not been triggered. (Conn Decl., ¶6.)

· The Gross Settlement Amount (“GSA”) is \$580,000, non-reversionary. (¶13.1)

· The Net Settlement Amount (“NSA”) of \$331,666.67 is the GSA minus:

· Up to \$193,333.33 (33.3%)
for attorneys’ fees (¶13.2.1);

Up to \$25,000 for attorneys’ costs (Ibid.);

Up to \$7,500 for
an Enhancement Payment to the class representative (¶13.2.3);

Up to \$7,500 for
costs of settlement administration (¶13.2.2); and

Payment of \$15,000
(75% of \$20,000 PAGA penalty) to the LWDA (¶13.2.5).

Defendant
will separately pay for employer payroll taxes, which is not included in the Gross Settlement Amount. (¶13.1)

· Funding of the Settlement: Defendant
shall fully fund the Gross Settlement Amount, and also fund the amounts necessary to fully pay Defendant’s share of payroll taxes by transmitting the funds to the Administrator no later than 60 days after the Effective Date. (¶14.3)

· Uncashed Checks: The Administrator will cancel all checks not cashed by the void date (not less than 180 days after the date of mailing). (¶14.4.1) For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after

the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member thereby leaving no "unpaid residue" subject to the requirements of Code of Civil Procedure section 384, subdivision (b). (¶4.4.3)

· The proposed Settlement Agreement was submitted to the LWDA on February 27, 2025. (Declaration of George S. Azadian ("Azadian Decl."), ISO Preliminary Approval Exh. 3.)

ANALYSIS OF SETTLEMENT AGREEMENT

A.

Does

a presumption of fairness exist?

The

Court preliminarily found in its Order on October 29, 2025 that the presumption of fairness should be applied. No facts have come to the Court's attention that would alter that preliminary conclusion. Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B. Is the settlement

fair, adequate, and reasonable?

The settlement was preliminarily

found to be fair, adequate and reasonable.

Notice has now been given to the Class and LWDA.

Reaction of the class

members to the proposed settlement.

Number of class members: 180 (Conn Decl., ¶5.)

Number of notice packets mailed: 180 (Id. at ¶8.)

Number of undeliverable notices: 8 (Id. at ¶9.)

Number of opt-outs: 0 (Id. at ¶14.)

Number of objections: 0 (Id. at ¶15.)

Number of participating class members: 180 (Id. at ¶17.)

Average individual payment: \$1,837.36 (Id. at
¶19.)

Highest estimated
payment: \$8,372.29 (Ibid.)

Lowest estimated
payment: \$39.31 (Ibid.)

Number of
Aggrieved Employees: 107 (Id. at ¶17.)

Average PAGA payment: \$46.73 (Id. at
¶21.)

Highest estimated
PAGA payment: \$111.71 (Ibid.)

Lowest estimated
PAGA payment: \$1.03 (Ibid.)

The Court finds that the notice was
given as directed and conforms to due process requirements. Given the reactions of the Class Members and
LWDA to the proposed settlement and for the reasons set for in the Preliminary
Approval order, the settlement is found to be fair, adequate, and reasonable.

C.

Attorney

Fees and Costs

Class Counsel

request an award of \$193,333.33 (1/3)

in fees and \$21,441.59 in costs.

(Motion ISO Final, 16:20-23; 18:20-21.)

The Settlement Agreement provides for fees up to \$193,333.33 (1/3) in fees and \$25,000 in costs (Settlement Agreement ¶3.2.1); class members were provided notice of the requested awards and none objected. (Conn Decl., ¶15 and Exhibit A thereto.)

“Courts recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method.” (Wershba at 254.) Here, class counsel requests attorney fees using the percentage method, as cross checked by lodestar. (Motion ISO Final Approval, pgs., 12-18.)

In common fund cases, the Court may employ a percentage of the benefit method, as cross-checked against the lodestar. (Laffitte v. Robert Half Int’l, Inc. (2016) 1 Cal.5th 480, 503.) The fee request represents 33% of the gross settlement amount, which is the average generally awarded in class actions. (See In re Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 558, fn. 13 [“Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery.”].)

Counsel
has provided the following loadstar information:

Biller

Rate

Hours

Total

George Azadian

\$775

183.7

\$142,367.50

Ani Azadian

\$700

32.6

\$22,820.00

TOTAL

216.3

\$165,187.50

(Azadian Decl. ISO Final, ¶23.)

Therefore,

counsel have spent a total of 216.3 hours for a total lodestar of \$165,187.50,

which would require a multiplier of

1.17 to yield the requested fee amount. (Id. at ¶¶23, 30.)

As

for costs, Class Counsel is requesting \$21,441.59.

(Azadian Decl. ISO Final, ¶35

and Exhibit 4 thereto.) This is less

than the \$25,000 cap provided for in the Settlement Agreement (¶3.2.1); for which Class Members were given notice and deemed

unobjectionable. (Conn Decl., ¶15 and Exhibit

A thereto.)

To

date, Class Counsel have incurred a total of \$21,441.59, in costs in this action. (Azadian

Decl. ISO Final, ¶35 and Exhibit 4 thereto.) The costs include, but are not

limited to, filing fees (\$1,766.01), Damages Expert Fee (Desmond, Marcello

& Amster, LLC) (\$3,851.72), case anywhere costs, and mediation costs (\$14,000).

(Ibid.) The costs appear to be

reasonable in amount and reasonably necessary to this litigation.

Based

on the above, the recommendation is to award \$193,333.33 in fees and \$21,441.59 in costs.

D.

Incentive

Award

The Settlement provides for up to \$7,500 for a service award to the Named Plaintiff. (Settlement Agreement, ¶3.2.3.)

Plaintiff Schwaner represents that his contributions to this litigation include, but were not limited to, spending 30 hours on the following: obtaining counsel, having numerous conversations with counsel, searching for and providing documents, identifying witnesses, preparing for and participating in mediation, and reviewing settlement documents. (Schwaner Decl., ¶¶4-6, 8-12.)

Based

on the above, as well as the benefits obtained on behalf of the class, the recommendation is to grant the enhancement payment in the amount of \$7,500.

E.

Claims

Administration Costs

The

claims administrator is requesting \$7,000 for the costs of settlement administration. (Conn Decl., ¶22.) This less than the estimated cost of \$7,500 provided for in the Settlement Agreement (¶3.2.2), and disclosed to class members in the Notice, to which there were no objections. (Conn Decl., ¶15 and Exhibit A thereto.)

Based on the above, the recommendation is to award costs in the requested amount of \$7,000.